

ELIZABETH II



1974 CHAPTER xvi

An Act to authorise the use for other purposes of a portion of the burial ground of the Spanish and Portuguese Jews' Congregation of London situate at Golders Green in the London borough of Barnet; and for purposes incidental thereto. [17th July 1974]

WHEREAS on the 17th May 1894 Her late Majesty's Secretary of State signified his approval (under the Burial Act 1852) of the site selected for a cemetery for Jews 1852 c. 85. consisting of an area of fifteen acres three roods and thirty-eight poles and situate at the corner of Temple Fortune Lane and Hoop Lane at Golders Green in the London borough of Barnet:

And whereas by a conveyance dated the 21st December 1894 the said site was conveyed to Sir Julian Goldsmid, Baronet, Benjamin Elkin Mocatta, Claude Joseph Goldsmid Montefiore and Alfred Joseph Waley:

And whereas by a conveyance dated the 23rd April 1896 the said Benjamin Elkin Mocatta, Claude Joseph Goldsmid Montefiore and Alfred Joseph Waley, the then Trustees of the West London Synagogue of British Jews, conveyed part of the site of the said cemetery and extending to about eight acres of land to Haim Guedalla, Joseph Sebag Montefiore, Arthur Lindo, Enrico Arbib, Charles Abraham Mocatta and James Castello as Trustees for the Wardens and Elders of the Congregation of Spanish and Portuguese Jews of London:

1948 c. 38. And whereas London Sephardi Trust is a company incorporated under the Companies Act 1948 as a company limited by guarantee:

And whereas by a scheme made on the 29th May 1958 by order of the Board of Charity Commissioners for England and Wales the said eight acres of land were vested in London Sephardi Trust as custodian trustees of the charity consisting of that land and certain other trust properties held in connection with the Spanish and Portuguese Jews' Synagogue and the members for the time being of the Board of Elders of the said Synagogue were declared to be the managing trustees of the said charity:

And whereas a portion of the said land comprising 1.46 acres or thereabouts (hereinafter referred to as "the unused burial ground") has never been the subject of consecration and no interment has taken place therein:

1884 c. 72. And whereas the unused burial ground constitutes a disused burial ground within the meaning of the Disused Burial Grounds Act 1884:

And whereas it is expedient that the unused burial ground should be freed from all restrictions which may affect it by reason of its being a disused burial ground and that the same should be permitted to be used for building and other purposes:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Spanish and Portuguese Jews' (Golders Green) Burial Ground Act 1974.

2.—(1) In this Act, unless the subject or context otherwise Interpretation.
requires—

“ the unused burial ground ” means the lands adjoining Temple Fortune Lane at Golders Green in the London borough of Barnet comprising 1·46 acres or thereabouts and coloured pink on the signed plan;

“ enactment ” includes an enactment in this Act or in any general or local Act and any order, rule, regulation, byelaw or scheme made under any Act;

“ the signed plan ” means the plan which has been signed in quadruplicate by Oscar Murton, the chairman of the Committee of the House of Commons to whom the Bill for this Act was referred, of which plan one copy has been deposited in the office of the Clerk of the Parliaments, House of Lords, one copy in the Private Bill Office of the House of Commons, one copy in the office of the town clerk of the London borough of Barnet and one copy with London Sephardi Trust.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

3. As from the passing of this Act, the unused burial ground shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever which immediately before the passing thereof attached to the unused burial ground and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached to the unused burial ground, or any part thereof, immediately before the passing of this Act by reason of the unused burial ground, or any part thereof, being a disused burial ground within the meaning of the Disused Burial Grounds Act 1884, or otherwise:

Discharge of trusts and restrictions affecting burial ground and saving for private rights.

1884 c. 72.

Provided that nothing in this Act shall operate to affect prejudicially any private right or easement over the unused burial ground, or any part thereof, which attached thereto immediately before the passing of this Act.

4. Notwithstanding anything contained in any enactment but subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, develop, deal with or dispose of the unused burial ground, or any part thereof, for building or for any other purpose in like manner as if no part thereof had ever been used or set apart for the interment of human remains.

Power to use burial ground for other purposes.

Saving for
Town and
Country
Planning Act
1971.
1971 c. 78.

5. Section 289 of the Town and Country Planning Act 1971 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to lands apply to land notwithstanding that provision is made by any local Act passed before or during the Session of 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that Session; and accordingly the Town and Country Planning Act 1971, and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act.

Costs of Act.

6. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by London Sephardi Trust.

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